

25STCV19390 25STCV19390

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C09%2F18%2F2026

Source SHA-256: 23d8f0d4c3003e712befa78388c8cca60033788fc865b4de56d2f9bbe080d0ab

Case Number: 25STCV19390 Hearing Date: September 18, 2026 Dept: 414

25STCV19390

William McKenna v. FCA US, LLC et al.

Friday,

September 18, 2026

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES AND REQUEST FOR MONETARY SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 (3357)

I.

BACKGROUND

This

action arises from alleged violations of the Song Beverly Consumer Warranty Act in connection with a warranty contract issued by Defendant manufacturer for a 2022 Jeep Wrangler

Plaintiff

argues Defendant failed to disclose initial documents as required by statute. Plaintiff asks for an order compelling Defendant's compliance by producing documents and issuing mandatory sanctions of \$2,500 against Defendant FCA US, LLC, and its counsel of record.

Defendant

contends it complied with its statutory obligations more than six months before Plaintiff's motion was filed. (D's Ex. 2.) Defendant provided over 1300 pages of materials including the warranty claims records, repair orders and reports,

sales information, the owner's manual, warranty information booklet, communications between Plaintiff and FCA US, and Technical Service Bulletins ("TSBs") and recalls applicable to the Subject Vehicle. (Brown decl., ¶ 4.) After Plaintiff signed a protective order, Defendant made a confidential production on June 23, 2026 and a supplemental confidential production on June 24, 2026. (Brown decl., ¶ 7, Ex. 3-4.)

The court has considered the motion, opposition, and supporting papers. Plaintiff did not file a reply brief.

II. DISCUSSION

The statute at issue requires both parties to disclose documents 60 days after the answer or responsive pleading. (Code Civ. Proc., § 871.26(b). Defendant has shown that it provided initial disclosures on December 11, 2025. (D's Ex. 2.) Plaintiff's counsel does not declare that an initial disclosure was made. (Rucker decl.) Defendant informed that it would make a further production. (Id.) Supplemental disclosures were made on June 23 and 24, 2026 (D's Ex. 3-5).

III. CONCLUSION

As Defendant complied with its statutory obligations, the motion is DENIED.